

Article 1 — Definitions and Parties

This Sale and Purchase Agreement (the "Agreement") is entered into between Azure Bay Developments LLC (the "Developer") and the party identified in Schedule 1 (the "Purchaser") for the sale and purchase of Unit 1B-04-17 within the project known as Marina Vista Residences (the "Project"), located on Plot No. MV-114, Dubai Marina, Dubai, United Arab Emirates (the "Unit").

1.2 "Handover Date" means the date on which the Developer notifies the Purchaser in writing that the Unit is ready for handover in accordance with Clause 9. "Completion" means the date on which the Developer obtains the Building Completion Certificate from the relevant Dubai authorities.

1.3 "Purchase Price" means the total consideration payable by the Purchaser for the Unit as set out in Schedule 2, exclusive of the Oqood registration fee, the Dubai Land Department transfer fee, and any applicable value added tax.

1.4 References to "RERA" mean the Real Estate Regulatory Agency of the Emirate of Dubai, and references to the "Escrow Account" mean the project-specific escrow account opened by the Developer pursuant to Law No. 8 of 2007 concerning escrow accounts for real estate development in Dubai.

Article 4 — Purchase Price and Payment Terms

4.1 The Purchase Price for the Unit is AED 1,912,500 (Dirhams One Million Nine Hundred and Twelve Thousand Five Hundred only), payable in accordance with the payment schedule set out in Schedule 2 and further detailed in the Payment Plan issued to the Purchaser.

4.2 The Purchaser shall pay a booking deposit of AED 95,625, equivalent to 5% of the Purchase Price, upon execution of the reservation form, with the balance of the down payment due within 30 days of signing this Agreement, together constituting 20% of the Purchase Price.

4.3 All subsequent instalments shall be paid into the Escrow Account maintained with a bank licensed by the Central Bank of the UAE, and the Developer shall provide the Purchaser with written confirmation of receipt within 10 business days of each payment.

4.4 Instalments linked to construction milestones shall become due within 14 days of the Developer issuing a certified progress notice from the appointed project consultant confirming that the relevant percentage of construction has been achieved.

Article 9 — Handover and Completion

9.1 The Developer shall use reasonable commercial endeavours to complete construction of the Unit and deliver Handover by the end of Q4 2027 (the "Anticipated Completion Date"), subject to a grace period of twelve (12) months from the Anticipated Completion Date (the "Grace Period") during which no compensation, penalty, or right of termination shall accrue to the Purchaser on account of delay.

9.2 Should Handover not occur within the Grace Period, the Purchaser shall be entitled to serve written notice on the Developer, and if Handover does not occur within 90 days of such notice, the Purchaser may elect to terminate this Agreement and receive a refund of amounts paid, less any amounts deducted pursuant to Clause 14.

9.3 The Developer shall notify the Purchaser in writing not less than 60 days prior to the anticipated Handover Date to enable the Purchaser to arrange final payment and inspection. The Purchaser shall attend a joint snagging inspection within 14 days of such notice.

9.4 Delay caused by Force Majeure Events as defined in Clause 16 shall extend the Grace Period by a period equivalent to the duration of the Force Majeure Event, provided the Developer notifies the Purchaser of such event within 30 days of its occurrence.

Article 11 — Service Charges and Owners Association

11.1 Upon formation of the Owners Association for the Project, the Purchaser shall be liable for service charges calculated on a per-square-foot basis, determined annually by the Owners Association budget and approved in accordance with applicable Dubai Land Department regulations governing jointly owned property.

11.2 The initial estimated service charge is AED 18 per sqft per annum, provided that the Developer reserves the right to make reasonable adjustments to this estimate prior to formation of the Owners Association to reflect actual operating costs of shared facilities, and such adjustment shall not require the Purchaser's consent.

11.3 Following formation of the Owners Association, service charges shall be reviewed annually and any dispute regarding the reasonableness of the approved budget shall be referred to the Rental Dispute Settlement Centre or successor body in accordance with applicable law.

11.4 The Purchaser acknowledges that shared facility costs, including but not limited to the podium pool, gymnasium, and retail podium common areas, shall be apportioned across all units in the Project regardless of individual usage.

Article 14 — Default and Termination

14.1 If the Purchaser fails to pay any instalment within 30 days of its due date, the Developer shall issue a written notice affording the Purchaser a cure period of 15 days from the date of such notice within which to remedy the default.

14.2 If the Purchaser fails to remedy the default within the cure period referred to in Clause 14.1, the Developer may terminate this Agreement by written notice, in which case the Developer shall be entitled to retain 25% of the Purchase Price as agreed liquidated damages, with the balance refunded to the Purchaser within 60 days of resale of the Unit to a third party.

14.3 Where termination occurs after 80% of the Purchase Price has been paid, the Developer shall, at its discretion, either complete the Unit and transfer title against payment of the balance, or terminate in accordance with Clause 14.2.

14.4 Nothing in this Clause 14 shall limit the Developer's right to pursue the Purchaser for any shortfall between the amount retained under Clause 14.2 and the Developer's actual proven losses arising from the default.

Article 17 — Assignment and Resale

17.1 The Purchaser may not assign, sell, or otherwise transfer its rights under this Agreement prior to payment of 40% of the Purchase Price without the prior written consent of the Developer, such consent not to be unreasonably withheld.

17.2 Any permitted assignment shall be subject to payment of an administrative and No Objection Certificate (NOC) fee of AED 5,250 or 0.5% of the Purchase Price, whichever is greater, payable by the Purchaser prior to issuance of the NOC.

17.3 The assignee shall execute a deed of adherence to this Agreement and shall assume all obligations of the Purchaser, including any outstanding instalments, as a condition of the Developer's consent.

17.4 The Developer shall issue or reject the NOC within 15 business days of receiving a complete assignment request together with proof of payment of the fee referred to in Clause 17.2.